

25PSCV03112 25PSCV03112

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-09-08

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Case Number: 25PSCV03112 Hearing Date: September 8, 2026 Dept: H

Noriega v. Los Angeles County

Fire Department, et al., Case No. 25PSCV03112

ORDER ON MOTION
TO CONTINUE TRIAL

Defendant

County of Los Angeles' Motion to Continue Trial, the Mediation Completion
Deadline, and All Trial-Related Dates and Deadlines is GRANTED.

Background

Plaintiff Christopher John Noriega ("Plaintiff")
alleges that on August 4, 2024, Plaintiff sustained injuries from a side-swipe
motorcycle versus automobile collision.

On August 27, 2025,
Plaintiff filed a complaint, asserting causes of action against Defendants Los
Angeles County Fire Department, County of Los Angeles ("County"), City of Los
Angeles ("City"), Giobani Rigoberto Lopez Meza, and Does 1-50 for: (1) Negligence, (2) Negligence
Entrustment, and (3) Negligent Hiring, Training, Retention, and Supervision.

On
December 15, 2025, Plaintiff dismissed City as a defendant.

The
Final Status Conference is set for October 9, 2026. Trial is set for October
21, 2026.

Pending before the Court is County's motion to continue trial, the mediation completion date, and all trial-related dates and deadlines.

Legal Standard

"Every court shall have the power to . . . amend and control its process and orders so as to make them conform to law and justice. . ." (Code Civ. Proc., § 128, subd. (a).)

"A party seeking a continuance of the date set for trial, whether contested or uncontested or stipulated to by the parties, must make the request for a continuance by a noticed motion or an ex parte application. . . , with supporting declarations. The party must make the motion or application as soon as reasonably practical once the necessity for the continuance is discovered." (Cal. Rules of Court, rule 3.1332(b).)

"Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include: . . . (6) A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts. . ." (Cal. Rules of Court, rule 3.1332(c).)

"In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include:

- (1) The proximity of the trial date;
- (2) Whether there was any previous continuance, extension of time, or delay of trial due to any party;
- (3) The length of the continuance requested;
- (4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;
- (5) The prejudice that parties or witnesses will suffer

as a result of the continuance; . . .

(7) The court's calendar and the impact of granting a continuance on other pending trials; . . .

(10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and

(11) Any other fact or circumstance relevant to the fair determination of the motion or application." (Cal. Rules of Court, rule 3.1332(d).)

Discussion

County moves the Court for an order, per Code of Civil Procedure sections 128 and 2024.050 and California Rules of Court, rule 3.1332, to continue trial four months from the current date of October 21, 2026, and all pre-trial related deadlines, including discovery cutoff.

County argues that, despite exercising diligence, essential discovery remains outstanding. Although County deposed three third-party eyewitnesses in May 2026, it contends those depositions could not be completed because Plaintiff's counsel instructed the witnesses not to answer certain questions and terminated one of the depositions. County further represents that four to five additional eyewitnesses have not been deposed and that the incomplete factual record will interfere with the parties' expert discovery.

Plaintiff opposes the continuance. Plaintiff argues that the Court has already addressed the parties' inability to meet the former mediation deadline by ordering them to participate in a Mandatory Settlement Conference through Resolve Law. Plaintiff further argues that County caused the mediation delay by failing to confirm a July 15, 2026, mediation date or select from fourteen subsequently proposed dates. Plaintiff also notes that his physical examination was confirmed for August 18, 2026, more than one month before the fact-discovery cutoff. According to Plaintiff, the remaining discovery can be completed under the existing schedule, and a continuance would prejudice him because he continues to experience physical pain, has unpaid medical expenses, has missed work for treatment, and has already endured nearly two years of litigation. Plaintiff additionally argues that County did not provide the meet-and-confer declaration required to reopen discovery under Code

of Civil Procedure section 2024.050.

The Court has reviewed the accompanying declarations and determines that a continuance of the trial date is warranted. While Plaintiff has agreed to proceed with the physical examination, that development does not resolve the outstanding percipient-witness discovery. County began taking the eyewitness depositions approximately five months before trial and filed motions to compel further deposition testimony when the depositions could not be completed. In addition to the resumed depositions, County represents that four to five additional eyewitnesses remain to be deposed. This is the first request to continue the first trial date, the requested continuance is limited to approximately 120 days, and the motion was filed more than two months before trial. Although Plaintiff identifies the hardship associated with additional delay, he does not identify any loss of evidence, witness unavailability, or comparable trial-related prejudice that would outweigh the need to try this disputed-liability action on an incomplete record. The Court therefore finds good cause to continue the trial under California Rules of Court, rule 3.1332.

As to the request to continue other trial-related deadlines, including the discovery cutoff, the Court tends to agree with Plaintiff that County has not provided a sufficient meet-and-confer declaration regarding the discovery and discovery-motion deadlines under Code of Civil Procedure section 2024.050. While the Court admonishes County's counsel in this regard, the Court nonetheless finds that based on the status of discovery, there is good cause to continue all trial-related deadlines, including the discovery cutoff date. As such, the motion to continue trial and all trial-related dates is GRANTED.

The Court will discuss continued dates with the parties at the time of the hearing. The Court's order requiring the parties to participate in a Mandatory Settlement Conference through Resolve Law no more than 60 days prior to trial remains in effect.